

1.

CASE #	CASE NAME	HEARING NAME
CVRI2501918	CONTRERAS VS VILLANUEVA	MOTION TO ADOPT APPRAISED FAIR MARKET VALUE

Tentative Ruling: The Court DENIES without prejudice the Motion to Adopt Appraised FMV because the Motion is procedurally defective.

The Partition of Real Property Act's (C.C.P. § 874.311, *et seq.* ("PRPA")) statutory mechanism states that after a court orders an appraisal to determine the fair market value of a property under C.C.P. § 874.316(d), "[o]n completion of the appraisal, the appraiser shall file a sworn or verified appraisal with the court." (C.C.P. § 874.316(d).) No later than 10 days after the appraisal is filed, the Court "shall send notice to each party with a known address, stating all of the following: (1) The appraised fair market value of the property; (2) That the appraisal is available at the court clerk's office; (3) That a party may file with the court an objection to the appraisal not later than 30 days after the notice is sent, stating the grounds for the objection." (C.C.P. § 874.316(e).) No sooner than 30 days after a copy of the notice is sent to each party, the Court *shall* conduct a hearing to determine the fair market value of the Property, whether an objection to the appraisal is filed. (C.C.P. § 874.316(f).) Only after this hearing has occurred, but before considering the merits of the underlying partition action, shall the Court determine the fair market value of the Property. (C.C.P. § 874.316(g).)

In this case, there is no evidence that the appraiser has filed a sworn or verified appraisal with the Court, as required under C.C.P. § 874.316(d). Although a copy of the appraisal report is attached to Contreras' motion, there is no supporting sworn declaration from Mowery. Accordingly, the Court **DENIES** the motion without prejudice.

As to the issue of an accounting, it is premature at this stage. Specifically, "the court shall determine the fair market value of the property" after the appraisal hearing, "but *before* considering the merits of the partition action." (C.C.P. § 874.316(g) [emphasis added].) Here, the Court has not yet held the appraisal hearing or determined the fair market value of the property. Accordingly, the Court need not address the parties' arguments regarding the merits of the partition action, including any requests for accounting or apportionment, at this stage.